

Basudev Saw vs The State Of Bihar on 29 March, 2023

Author: Partha Sarthy

Bench: Partha Sarthy

IN THE HIGH COURT OF JUDICATURE AT PATNA

Civil Writ Jurisdiction Case No.9536 of 2022

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1. Basudev Saw son of Late Ram Kisun Saw
 2. Sanjay Saw, son of Late Kamaldeo Saw
 3. Rajesh Saw @ Guddu Saw, son of Late Ram Kisun Saw
 4. Gorakh Saw, son of Basudev Saw
 5. Raushan Kumar @ Raushan Saw, son of Rajesh Saw @ Guddu Saw
- All are resident of Village-Prayag Bigha, Southern Tola, Ward No. 1, P.O. and P.S.-Dalmiyanagar, District-Rohtas.

... .. Petitioner/s

Versus

1. The State of Bihar through the Principal Secretary, Department of Revenue and Land Reforms, Government of Bihar, Patna.
2. The Commissioner, Patna Division, Patna.
3. The Land Reforms Deputy Collector, Dehri, District-Rohtas.
4. The Circle Officer, Dehri, District-Rohtas.
5. Yamuna Singh, son of Late Ganeshi Singh, resident of Village-Prayag Bigha, Southern Tola, Ward No. 1, P.O. and P.S. Dalmiyanagar, District-Rohtas.

... .. Respondent/s

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Appearance :

For the Petitioner/s : Mr. Rajani Kant Singh, Advocate

For the Respondent/s : Mr. Sajid Salim Khan, SC-25

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CORAM: HONOURABLE MR. JUSTICE PARTHA SARTHY

ORAL JUDGMENT

Date : 29-03-2023

Heard learned counsel for the petitioners, learned
counsel for the respondent-State and learned counsel for the
respondent no.5.

The petitioners have filed the instant application for
the following relief(s):

"That, the petitioners crave indulgence of this
Hon'ble Court for issuance of an appropriate writ

in the nature of Certiorari for quashing the order dated 20.05.2022 passed by learned Land Reforms Deputy Collector, Dehri, Rohtas in Land Dispute Resolution Case No.17/2021-22 as contained in Annexure-2 whereby and whereunder learned L.R.D.C. Dehri has declared that the petitioners and respondent no.5 both have equal share of one katha of the land in question and Circle officer Dehri was directed to hand over the possession after measurement by Anchal Amin and it has been further directed that after measurement the remaining land of about 5 ft. may be demarcated as Rasta and further to pass any order/orders, direction/directions, command/ commands directing the respondents to not interfere in the peaceful possession of the petitioners over R.S.Khata no.654/C.S.Khata no.104, R.S. Plot no.3234/C.S. Plot 1921, area 21 ft. North-South, 85 ft.-East-West, situated in Mauza Ganguli, P.S.-Dehri, Thana no.148, Ward no.1, Nagar Parishad, Dehri Dalmianagar, District-Rohtas, and further to declare the impugned order dated 20.05.2022 passed by respondent no.3 in Land Dispute Resolution Case no.17/2021-22 as illegal, arbitrary and without jurisdiction."

It is submitted by learned counsel appearing for the petitioners that the instant application arises out of an order dated 20.5.2022 passed in Resolution Case no.17/2021-22 by

the Deputy Collector Land Reforms, Dehri, Rohtas.

Learned counsel for the petitioners submits that the order impugned dated 20.5.2022 was passed by the D.C.L.R., Dehri, Rohtas on an application filed by the respondent no.5 under section 4(c) of the Bihar Land Disputes Resolution Act,

2009 (hereinafter referred to as 'the Act'). It is submitted that the respondent no.5 neither being an allottee nor a settlee as defined under section 2(f) of the Act, the application under section 4(c) of the Act itself was not maintainable and consequently the order impugned dated 20.5.2022 (Annexure-2) is without jurisdiction. Thus, the same be set aside and the writ application be allowed.

Learned counsel appearing for respondent no.5 submitted that from perusal of the application filed by the respondent no.5, copy of which has been brought on record as annexures to the writ application, it would transpire that the same is not under section 4(c) of the Act and mentioning the application of respondent no.5 as being under section 4(c) of the Act in the order impugned dated 20.5.2022, the D.C.L.R., Dehri, Rohtas has committed an error of record. It is submitted that as stated in his petition before the D.C.L.R., Dehri, Rohtas, the respondent no.5 purchased the land in question by a registered sale deed dated 27.9.2019 and had filed the application before Patna High Court CWJC No.9536 of 2022 dt.29-03-2023

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the D.C.L.R., Dehri, Rohtas praying for demarcation of his purchased land. Thus, in effect, the application of the respondent no.5 was with respect to boundary dispute which comes under section 4(h) of the Act.

Having heard learned counsel for the parties and having gone through the affidavits on record, it transpires that

the petitioners purchased the land in question by a registered sale deed dated 3548 dated 27.9.2019 and thereafter a jamabandi was opened in his name. It is for this land that the petitioners filed the application before the D.C.L.R., Dehri, Rohtas which was registered as Land Dispute Case no.17/2021-22 praying therein for demarcation.

From the materials on record, what is not in dispute is that the application filed by the petitioners as contained in Annexure-1 to the writ application before the D.C.L.R., Dehri, Rohtas was under the Bihar Land Disputes Resolution Act, 2009.

Section 4 of the Act talks about the jurisdiction and authority to resolve the disputes and is quoted herein below for ready reference:

"4. Jurisdiction and authority to resolve disputes.-

(1) The competent authority shall have jurisdiction and authority to hear and adjudicate, on an

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application or complaint or on any application referred to by a prescribed authority or officer, any issue arising out of following types of disputes:-

(a) Unauthorised and unlawful dispossession of any settlee or allottee from any land or part thereof, settled with or allotted to him [or under any Act or Policy of the State or Central Government providing for settlement of government land to the persons of any specified category] under any Act contained in Schedule-1 to this Act by issuance of any settlement document/parcha by a competent authority;

(b) Restoration of possession of settled / allotted land in favour of legally entitled settlee/ allottee or his successors/heirs, upon adjudication of

unauthorized and unlawful dispossession;
(c) Threatened dispossession of a legally entitled settler/ allottee;
(d) Any of the matters enumerated in (a), (b) and (c) above appertaining to raiyati land.
(e) Partition of land holding;
(f) Correction of entry made in the record of rights including map/survey map.
(g) Declaration of the right of a person;
(h) Boundary disputes;
(i) Construction of unauthorized structure; and
(j) Lis pendens transfer.
(2) The competent authority shall not have jurisdiction to review or reopen any finally concluded and adjudicated proceeding under any of the Acts contained in Schedule-1. The competent authority shall exercise his authority for resolving

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the dispute brought before him on the basis of any final order passed by any of the authorities empowered to do so in the Acts contained in Schedule-1 of this Act.

(3) The competent authority shall not have jurisdiction to adjudicate any fresh rights of allottee / settler or a raiyat which is not yet determined and is required to be determined in accordance with provisions contained in any of the Acts contained in Schedule-1:

Provided that where rights of allottee / settler or raiyat are already determined under any of the Acts contained in Schedule-1, the competent authority shall have jurisdiction to entertain cases appertaining to matters enumerated in sub-section(1).

(4) Notwithstanding anything contained in sub-section (2) and (3)herein above, if no provision is made in any of the Acts contained in Schedule-1 for determination of rights of allottee / settler or raiyat and claimed right is yet to be determined, it shall be open to the competent authority to finally determine such right.

(5) The competent authority, wherever it appears to him that the case instituted before him involves complex question of adjudication of title, he shall close the proceeding and leave it open to parties to seek remedies before the competent Civil Court."

From perusal of section 4(a), (b), (c) and (d) of the
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Act, the same clearly talks about settler/allottee or his
successors/heirs. Allottee or settler has been defined under
section 2(f) of the Act and it reads as follows:

"2. (f) Allottee or Settler" connotes the person with
whom land has been settled by the competent
authority or the person who has acquired raiyati
rights over the land,[or under any Act or Policy of
the State or Central Government providing for
settlement of government land to the persons of any
specified category] under any of the Acts contained
in Schedule-1 to this Act."

Further, for ready reference, Schedule-1 of the Bihar
Land Disputes Resolution Act, 2009 is reproduced herein
below:

Schedule-1

- (1) The Bihar Land Reforms Act, 1950
- (2) The Bihar Tenancy Act, 1885
- (3) The Bihar Privileged Persons Homestead
Tenancy Act, 1947
- (4) The Bihar Bhoodan Yagna Act, 1954
- (5) The Bihar Land Reforms (Fixation of Ceiling
and Acquisition of Surplus Land) Act, 1961
- (6) The Bihar Consolidation of Holdings and
Prevention of Fragmentation Act, 1956.

Admittedly, the case of the respondent no.5 not being
that the land in question was a Government land, which was
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settled in his favour under any of the Acts, contained in Schedule-1 to the Act, there can be no dispute with respect to the fact that the respondent no.5 is neither an allottee nor a settlee as defined under the Act.

The next question which would arise is as to whether the authority under the Act would have jurisdiction to decide the disputes as mentioned in sections 4(1)(e) to 4(1)(j) with respect to persons who are not settlee/allottee as in the case of this petitioner. It is true that sections 4(1)(a), (b) and (c) specifically mentions the term 'settlee/allottee' while the same is not used in sections 4(1)(e) to 4(1)(j). At this stage, it would be relevant to refer to the preamble of the Act for purpose of ascertaining the intent for which the legislature enacted the Act.

The preamble of the Act is reproduced herein below for ready reference:

"Preamble:- Whereas, in the State of Bihar, disputes relating to record of rights, boundaries, entries in revenue records, unlawful occupation of raiyati land and forcible dispossession of allottees and settlees of public land, generate problems and cause unnecessary harassment to bonafide allottees/settlees, raiyats or occupants; WHEREAS, such disputes with respect to raiyati land or public land allotted in favour of different classes of allottees are unnecessarily occupying major space of Civil Courts and Hon'ble High

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Court and which should otherwise have been resolved by the Revenue Authorities, who may be better equipped to deal with such disputes having regard to their continued presence in the field offices and their expertise in Revenue Administration,

WHEREAS, in larger public interest it is deemed necessary to provide for effective and speedy mechanism to resolve such disputes which give rise to major turbulence if not addressed immediately and effectively;

AND, WHEREAS, it has been found in analysis of data relating to nature of disputes that they mostly appertain to matters connected with the record of rights, partition of jamabandi, forcible dispossession of allottees / raiyats, boundary disputes etc. and in this context, the administration of the following Acts is involved:

- (1) The Bihar Land Reforms Act, 1950,
- (2) The Bihar Tenancy Act, 1885,
- (3) The Bihar Privileged Persons Homestead Tenancy Act, 1947,
- (4) The Bihar Bhoodan Yagna Act, 1954,
- (5) The Bihar Land Reforms (Fixation of Ceiling and Acquisition of Surplus Land) Act, 1961,
- (6) The Bihar Consolidation of Holdings and Prevention of Fragmentation Act, 1956,

AND, Whereas, different forums and procedures have been provided for the resolution of disputes under the above referred Acts and it is considered expedient to provide a uniform and common forum, procedure and mechanism which would achieve the

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objective of effective, efficacious and speedy resolution of disputes."

From reading of the preamble and the Act as a whole, there remains no doubt that the purpose of the legislature in enacting the Act was effective and speedy mechanism to resolve disputes with respect to matters connected with record of rights, partition of jamabandi, forcible dispossession of allottees/raiya ts, boundary disputes etc. and in this context, the Acts namely The Bihar Land Reforms Act, 1950, The Bihar Tenancy Act, 1885, The Bihar Privileged Persons Homestead

Tenancy Act, 1947, The Bihar Bhoodan Yagna Act, 1954, The Bihar Land Reforms (Fixation of Ceiling and Acquisition of Surplus Land) Act, 1961 and The Bihar Consolidation of Holdings and Prevention of Fragmentation Act, 1956 were involved.

Thus, in the opinion of the Court, what appears from the reading of the Act as a whole along with its preamble as quoted herein above and specifically section 3 of the Act, the purpose of the Act is on resolution of any dispute arising out of or under any of the six Acts mentioned in Schedule-1.

So far as the instant case is concerned, the case of the respondent no.5, on whose application the proceedings under Patna High Court CWJC No.9536 of 2022 dt.29-03-2023
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the Bihar Land Disputes Resolution Act, 2009 commenced in the Court of the learned D.C.L.R., Dehri, Rohtas, was neither an allottee nor a settlee nor was his case that the land in question which is the subject matter of the dispute came in his possession under any of the six Acts mentioned in Schedule-1 to the Bihar Land Disputes Resolution Act, 2009.

Thus, in view of the facts stated herein above, the application filed by the respondent no.5 before the D.C.L.R., Dehri, Rohtas under the Bihar Land Disputes Resolution Act, 2009 was not maintainable and as a result the order dated 20.5.2022

passed in Case no.17/2021-22 by the D.C.L.R., Dehri, Rohtas being without jurisdiction, is not sustainable and is hereby quashed.

The writ application is allowed.

(Partha Sarthy, J) Saurabh/-

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